that the lands patented to the State under said act and those desired to be acquired by the State in exchange, are of approximately equal value, and that the tracts to be acquired contain characteristic desert growth and scenic or other natural features desired to be preserved as a part of the California State park system.

The proposal for exchange should be in the form of a joint application signed by the proper State official and by the owner of the land which the State desires to acquire in exchange, definitely describing by legal subdivisions of the Government surveys the lands relinquished by the State and those desired by the State in exchange therefor. Such joint application should be filed in your office in triplicate, two copies of which you will transmit to this office, one copy to be given the serial number of the original selection of the State, the second copy to be assigned a new serial number under which patent would be issued to the party exchanging with the State and the third copy should be forwarded to the Division of Investigations. Such joint application should be accompanied with a deed of reconveyance to the United States of the tract patented to the State under said act of June 29, 1936 (Public, No. 838, 49 Stat. 2026), and with a deed of conveyance to the United States from the owner of the tract desired by the State in exchange, such deeds to be duly executed in accordance with the laws of the State, and both deeds to be unrecorded. There should also be filed a certificate by the proper State officer and a certificate by the county recorder showing no encumbrances of the land reconveyed by the State to the United States.

There must be filed a duly-authenticated abstract of title to the tract conveyed to the United States and desired by the State in exchange, showing title to such land in the party conveying to the United States. The certificate of authentication of the abstract must be signed by the recorder of deeds under his official seal and must show that the title memorandum is a full, true, and complete abstract of all matters of record or on file in his office, including conveyances, mortgages, or other encumbrances. The custodian of tax records must certify that all taxes levied or assessed against the land or that could operate as a lien thereon, have been paid in full, and that there are no unredeemed tax sales and no tax deeds outstanding as shown by the records of his office. The absence of judgment liens or pending suits against the grantor, which might affect the title to the land, must be shown by the official certificates of the clerks of the courts of record whose judgments under the laws of the United States or of the State constitute a lien on the land conveyed. Such abstract may be authenticated by an abstractor or abstract company approved under section 42 of the mining regulations of April 11, 1922 (49 L. D. 15, 69).

Upon receipt of a joint application for exchange in the General Land Office, accompanied with the required evidence, a report will be requested from the Division of Investigations as to the comparative values of the lands involved, those relinquished by the State and those desired by the State in lieu thereof. At the same time a report will be requested from the National Park Service as to the value for park purposes of the lands desired by the State.

Publication of notice of the proposed exchange will not be required and payment of fees will not be required in connection therewith.

If all be regular and the reports of the Division of Investigations and the National Park Service be satisfactory, the proposed exchange will be submitted to the Secretary of the Interior for his consideration. Upon the approval of the exchange by the Secretary of the Interior, the deeds of conveyance will be returned for recording and the abstract of title to be brought down to show such recordation.

Upon the receipt in this Office of the recorded deeds, a patent will be issued to the State for the tract desired in exchange, such patent to contain the mineral reservation and the forfeiture provision prescribed by the act, and as contained in the patent issued to the State for the lands originally selected. A patent also will be issued to the party exchanging with the State for the tract reconveyed by the State to the United States.

The proviso to section 1 of the act provides that the Secretary of the Interior may set aside lands embracing approximately 42,000 acres of the area described in the act, and in his discretion, and under such rules and regulations as he may prescribe, may transfer complete title to all or any part thereof to the State of California on an acre-for-acre basis, in consideration of the transfer by the State to the United States of the complete title to lands owned by the State within the area withdrawn by Executive Order No. 6361, of October 25, 1933, in which event the provisions of section 2 of the act would not apply.

Should the Secretary of the Interior elect to designate 42,000 acres of the area described for the purpose of exchange in accordance with the proviso to section 1 of this act, further instructions will be issued in regard thereto.

Very respectfully,

FRED W. JOHNSON,
Commissioner.

Approved: September 22, 1937.

T. A. WALTERS,
First Assistant Secretary.

[F. R. Doc. 37-2989; Filed, October 9, 1937; 9:34 a. m.]

STOCK DRIVEWAY WITHDRAWALS NOS. 156, 209, AND 238, OREGON NOS. 14, 26, AND 36, MODIFIED

OCTOBER 1, 1937.

It appearing that the following-described public land should be included in Stock Driveway Withdrawal No. 209, Oregon No. 26, it is ordered, under and pursuant to the provisions of section 7 of the act of June 28, 1934, 48 Stat. 1269, as amended by the act of June 26, 1936, 49 Stat. 1976, and section ten of the act of December 29, 1916, 39 Stat. 862, as amended by the act of January 29, 1929, 45 Stat. 1144, that such land, excepting any mineral deposits therein, be, and it is hereby, withdrawn from all disposal under the public-land laws and reserved for the use of the general public as an addition to such driveway reservation, subject to valid existing rights:

WILLAMETTE MERIDIAN

T. 11 S., R. 26 E.,
sec. 33, SE¼SE¼, 40 acres.

Any mineral deposits in the land shall be subject to location and entry only in the manner prescribed by the Secretary of the Interior in accordance with the provisions of the aforesaid act of January 29, 1929, and existing regulations.

And departmental orders of June 14, 1922, February 25, 1930, May 11 and November 10, 1931, September 22, 1932, and January 19 and April 5, 1937,[1] establishing or modifying Stock Driveway Withdrawals Nos. 156, 209, and 238, Oregon Nos. 14, 26, and 36, are hereby revoked so far as they affect the following-described lands:

WILLAMETTE MERIDIAN

T. 10 S., R. 25 E.,
sec. 25, SW¼, W½SE¼;
sec. 34, NE¼, E½NW¼, NE¼SW¼;
T. 11 S., R. 25 E.,
sec. 1, SW¼NE¼, lot 4, S½NW¼, E½SW¼, SE¼;
sec. 12, NE¼, E½NW¼, SW¼;
sec. 13, N½NW¼, SW¼NW¼, SW¼, SW¼SE¼;
sec. 23, S½SW¼, SE¼;
sec. 24, N½, SW¼, NW¼SE¼;
sec. 25, NW¼, N½S½;
sec. 26, N½, N½S½, S½SW¼;
sec. 34, E½;
sec. 35;
T. 12 S., R. 25 E.,
sec. 1, N½, N½S½;
sec. 2, N½, SW¼, N½SE¼;
sec. 3, NE¼, N½SE¼;

[1] 2 F. R. 269, 847 (DI).